

26STCV15225 26STCV15225

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Case Number: 26STCV15225 Hearing Date: September 16, 2026 Dept: 529

JANE DOE 1 VS DOC JOHNSON ENTERPRISES,
ET AL.

DEFENDANTSs DEMURRER TO THE
COMPLAINT

Date of Hearing: September
16, 2026 Trial Date: None
set.

Department: 529 Case
No.: 26STCV15225

Moving Party: Defendants
Doc Johnson Enterprises, Health Devices Corporation, Scott Watkins, Chad
Braverman and Ronald Braverman

Responding Party: Plaintiff
Jane Doe

Meet and Confer: Yes.

BACKGROUND

On May 12, 2026, Plaintiff Jane Doe 1
filed a complaint against Doc Johnson Enterprises, Health Devices Corporation,
Scott Watkins, Chad Braverman and Ronald Braverman for (1) Breach of Contract;
(2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Intentional

Misrepresentation; (4) Negligent Misrepresentation; (5) Violation of Civil Code §3344; (6) Equitable Accounting; (7) Negligence based on Failure to Protect Plaintiff from Sexual Harassment and Invasive Misconduct; (8) Negligent Hiring, Supervision, or Retention; (9) Intentional Infliction of Emotional Distress; (10) Violation of Civil Code §51.9; (11) Violation of Business & Professions Code §17200 et seq.

[Tentative] Ruling

Defendants Doc Johnson Enterprises, Health Devices Corporation, Scott Watkins, Chad Braverman and Ronald Braverman's Demurrer to the Complaint is SUSTAINED IN PART; Defendants Doc Johnson Enterprises, Health Devices Corporation, Scott Watkins, Chad Braverman and Ronald Braverman's Motion to Strike is DENIED.

DISCUSSION

Defendants Doc Johnson Enterprises, Health Devices Corporation, Scott Watkins, Chad Braverman and Ronald Braverman demur to the complaint on the grounds that the challenged causes of action fail to state facts sufficient to constitute a cause of action and are uncertain.

First Cause of Action

Defendants demur the first cause of action for breach of contract against Defendants Doc Johnson and Health Devices on the grounds that the alleged breaches are contradicted by the terms of the written agreement attached to the complaint as Exhibit A and impermissibly seek to impose obligations that are not contained therein.

Defendants argue the Agreement contains no first-quarter-2023 launch date, affiliate and direct-to-consumer "infrastructure" and promotional support. Rather, the asserted promise appears only as an alleged oral statement at a pre-contract pitch meeting. (Compl., ¶¶ 22–23.) Because the parole evidence rule bars prior or contemporaneous extrinsic promises, the alleged breach is unenforceable. Moreover, the affiliate, direct-to-consumer, and promotional-support theories are contradicted by the Agreement's express terms. The Agreement provides that the company "may, but is not required to[,] promote or advertise other than on its existing and ordinary marketing channels," and reserves to the company the

right to sell Plaintiff's product "exclusively . . . online on Doc Johnson owned websites." (Compl., Ex. A, Agreement's Ex. A, ¶¶ 13, 19.)

In opposition, Plaintiff argues Defendants were obliged to comply with their marketing duties, at least through the ordinary marketing channels and Plaintiff alleges that timing of such performance was due in the first quarter of 2023. Moreover, the complaint alleges far more than that, including the failure to pay royalties, failure to provide required royalty statements and sales reporting, continued sales following the alleged contractual reversion of Plaintiffs intellectual-property rights, specific pre-contract representations made during the solicitation process, and circumstances allegedly demonstrating that Defendants never intended to provide the economic benefits used to induce Plaintiff into the transaction. Even assuming solely for purposes of argument that Plaintiff cannot enforce the alleged Q1 2023 launch representation as an express contractual term, the First Cause of Action independently alleges Defendants' failure to provide required royalty statements and sales information and failure to pay royalties due.

The court finds the allegations sufficient for the purposes of a demurrer. A demurrer tests only whether the properly pleaded facts state a cause of action under any legal theory. So while the court may disregard the alleged Q1 launch representations and building of affiliate and direct-to-consumer infrastructure as an express contractual term, the cause of action still alleges Defendants failed to timely pay royalties as well as provide promised promotional support and similar theories which is expressly contracted for in the Agreement. (See Compl., Exh. A p. 3, 14.) At this stage, the court must take the allegations as true and whether that such promotion was required only where "the cost for acquisition remains profitable and scalable" is not the test for a demurrer.

Based on the foregoing, the demurrer to the first cause of action is OVERRULED.

Third and Fourth Causes of Action

Defendants demur to the third cause of action for intentional misrepresentation and fourth cause of action for negligent misrepresentation on the grounds the alleged misrepresentations are not pleaded with the specificity required of a fraud claim and it rests on

alleged promises of future conduct, which are not actionable as negligent misrepresentation.

The elements of fraud are: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) Negligent misrepresentation requires the defendant to make false statements believing them to be true, but without reasonable ground for such belief. (See Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407.) "To be actionable, a negligent misrepresentation must ordinarily be as to past or existing material facts." (Tarmann v. State Farm Mutual Automobile Insurance Co. (1991) 2 Cal.App.4th 153, 158.) Statements as to future action are do not constitute actionable fraud. (Id.)

Defendants argue the complaint does not meet the heightened standard of pleading for fraud claims. Specifically, no specific statement, made at a specified time and place, is attributed to Watkins, Chad Braverman, or Ronald Braverman individually. Moreover, the intentional-misrepresentation claim independently fails because it is, in substance, a promissory-fraud claim that does not plead the requisite fraudulent intent. Lastly, the negligent-misrepresentation claims on the independent reason that it rests entirely on promises of future conduct. Because every representation underlying this claim is a promise of future performance, it fails as a matter of law.

In opposition, Plaintiff argues the complaint is alleged with the requisite specificity. Moreover, Plaintiff does not merely allege that Defendants promised performance and subsequently failed to perform. Rather, she alleges that the representations were false when made and were made without a present intention of fully performing. (Compl. ¶¶34, 44.)

The court agrees both fraud claims are not alleged with the requisite specificity. As noted by Defendants, the only speaker identified with any particularity remains Remington Franklin (a non-party consultant) at a precontract meeting. However, the complaint does not allege his authority to speak for Doc Johnson Enterprises. The complaint does not allege that Health Devices separately participated in the solicitation or pitch meeting, does not identify any Health Devices speaker, and does not provide a basis for Franklin's authority to speak for Health Devices. As for the

individuals, the complaint attributes misrepresentations collectively to Watkins, Braverman, Ronald Braverman, and their agents. This is insufficient for a fraud cause of action. Similarly, the complaint does not allege the requisite intent with specificity. Plaintiff merely alleges the Defendants made the representations without any intention of fully performing. (Compl. ¶¶44.) Lastly, in regards to future performance, the court finds Plaintiff has not sufficiently alleged claim for negligent misrepresentation as there is no recognized cause of action for a negligent misrepresentation based on a false promise. (See *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 331.)

Based on the foregoing, the demurrer to the third and fourth causes of action are SUSTAINED WITH LEAVE TO AMEND.

Fifth Cause of Action

Defendants demur to the fifth cause of action for violation of Civil Code section 3344 on the grounds Plaintiff's own agreement establishes consent and an express waiver of Section 3344.

Civil Code section 3344(a) prohibits use of a person's name, likeness, or image for commercial purposes without prior consent. (Civ. Code § 3344.) Lack of consent is an essential element. (*Maxwell v. Dolezal* (2014) 231 Cal. App. 4th 93, 97.)

Defendants argue the Agreement establishes consent on its face. Plaintiff granted the company "the perpetual, worldwide right to use" her name, likeness, image, and photograph, and she "explicitly waive[d] any rights that [she] may have under such statutes or other applicable laws to prevent [the company] from using the Molds or selling the Products," expressly identifying Civil Code section 3344. (Compl., Exh. A, § 1.7.)

In opposition, Plaintiff argues the complaint sufficiently alleges on November 15, 2024, Plaintiff sent formal notice of termination pursuant to the Agreement and Defendants failed to cure within the time permitted by the Agreement. (See Exh. A §3.6.) Accordingly, Defendants continued unauthorized use of the Subject Images was without consent.

The court finds the allegations insufficient. The complaint does not clearly distinguish pre-termination from post-termination uses. The pleading should identify that the challenged Section 3344 uses are the post-February 13, 2025 uses and should specify which categories of post-termination use are being challenged.

Based on the foregoing, the demurrer to the fifth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Seventh – Tenth Causes of Action

Defendant demurs to the seventh through tenth causes of action on the grounds each claim is governed by the two-year limitations period of CCP § 335.1. The conduct on which these claims rest is alleged to have occurred at the September 2, 2022 molding session and at the November 7, 2023 photoshoot. However, Plaintiff did not file suit until May 12, 2026.

In opposition, Plaintiff argues a continued failure to maintain professional safeguards after complaints were made on May 7, 2024, and November 15, 2024, and systematic exploitation causing emotional distress. Moreover, Defendants kept manufacturing and selling products cast from Plaintiff's body after the Agreement was terminated, after Plaintiff requested that Defendants stop, and after Plaintiff's intellectual-property rights reverted under section 3.6, with Amazon listings live through February 2026, and still live today.

The court finds the allegations are barred on the face of the complaint. Plaintiff does not allege any continuing violation in the complaint and the complaint alleges nothing after 2023.

Based on the foregoing, the demurrer to the seventh, eighth, ninth, and tenth causes of action is SUSTAINED WITH LEAVE TO AMEND.

Motion to Strike

Defendants move to strike the improper use of Plaintiff's "Jane Doe" pseudonym on the grounds Plaintiff filed the

complaint under the “Jane Doe” pseudonym without a proper basis and without leave of court.

Defendants contend pursuant to California law, except in circumstances not applicable here, all plaintiffs must file a lawsuit under their real names. (CCP § 422.40.) In order to proceed under a pseudonym in a civil action, the plaintiff must affirmatively move for an order granting permission to proceed anonymously. (See Dep’t of Fair Emp. & Hous. v. Superior Ct. of Santa Clara Cnty. (2022) 82 Cal.App.5th 105, 112.)

In opposition, Plaintiff argues her use of the pseudonym Jane Doe is necessary to preserve privacy in a matter of sensitive and highly personal nature. Here, the dispute arises from an agreement under which Defendants obtained molds taken directly from Plaintiffs genital anatomy so that Defendants could manufacture and sell adult pleasure products reproducing Plaintiffs anatomy. Moreover, Defendants know precisely who Plaintiff is.

The court finds Plaintiff has adequately established a basis for proceeding as a Doe plaintiff. (See Department of Fair Employment and Housing v. Superior Court of Santa Clara County (2022) 82 Cal.App.5th 105, fn. 1.) Although the public has a constitutionally protected right of access to court documents and proceedings, such interest here is outweighed by plaintiff’s privacy rights given the intimate nature of this dispute (use of plaintiff’s genital reproduction). Further, plaintiff has properly proceeded by submitting the request to file as a “Doe” plaintiff pursuant to Civil Code Section 1708.85 (distribution of sexually explicit material). That section expressly allows for the use of pseudonymous names where plaintiff alleges that depictions of her sexual parts have been distributed without her consent. Because defendants know who plaintiff is, there is no prejudice to them in allowing plaintiff to proceed as a Doe.

Based on the foregoing, the motion to strike is DENIED.